

Kifisias Avenue 1-3, 11523 Athens  
T: 210 6475 600 • E: [contact@dpa.gr](mailto:contact@dpa.gr) • [www.dpa.gr](http://www.dpa.gr)

Athens, 05-02-2025  
Protocol No.: 507

## DECISION 8/2025

The Hellenic Data Protection Authority convened in a Department composition via teleconference on Wednesday, 13-11-2024, following an invitation from its President, to examine the case referred to in the background of this document. Present were Georgios Batzalexis, Deputy President, in the absence of the Authority's President, Konstantinos Menoudakos, and the alternate members Dimosthenis Bougioukas, as rapporteur, and Maria Psalla, replacing the regular members Konstantinos Lamprinoudakis and Grigorios Tsolias, who, although duly summoned in writing, did not attend due to impediments. Also present at the meeting was Leonidas Roussos, as assistant rapporteur, and by order of the President, Irini Papageorgopoulou served as Secretary, an employee of the Authority's administrative affairs department.

The Authority took into consideration the following:

Following Decision 16/2022 of the Authority, which imposed a sanction on the dating agency named "ANOIXIS" (hereinafter, the data controller), specifically a fine of fifty-four thousand (54,000) Euros, for violating the provisions of Article 11 of Law 3471/2006, as well as for its non-cooperation with the Authority, after examining thirty-six (36) complaints that had been submitted to the Authority, fifteen (15) new complaints were submitted to the Authority regarding the same subject matter. Specifically, as in the previous cases, the sending of unsolicited electronic communications via short text messages (SMS) by the data controller for the commercial promotion of its services is reported. As in the previous cases, the complainants declare no prior transactional contact or other relationship with the Data Controller.

Specifically, the following new related complaints were submitted to the Authority with protocol numbers G/EIS/892/05-02-2024, G/EIS/1680/01-03-2024, G/EIS/2472/16-03-2024, G/EIS/2720/22-03-2024, G/EIS/2825/26-03-2024, G/EIS/2833/26-03-2024, G/EIS/3056/02-04-2024, G/EIS/3720/22-04-2024, G/EIS/4333/16-05-2024, G/EIS/4674/29-05-2024, G/EIS/4741/30-05-2024, G/EIS/6356/01-08-2024, G/EIS/6901/06-09-2024, G/EIS/7653/04-10-2024, and G/EIS/7729/07-10-2024. These complaints document that the complainants received SMS messages containing "ANOIXIS DATING AGENCY FIND YOUR PERSON PURPOSE RELATIONSHIP - MARRIAGE ATHENS THESSALONIKI NATIONWIDE 2103251725 ADS AT [www.anoixisdate.gr](http://www.anoixisdate.gr) ADVERTISEMENT MESSAGE" from the phone number ..., in line with the advertising messages that the complainants received in Decision 16/2022 of the Authority.

The Authority sent a request to the telecommunications provider Cosmote – Mobile Telecommunications S.A. with document number G/EXE/975/28-03-2024 to be informed about the person to whom the phone number ... was assigned from which the aforementioned messages were sent, in order to verify the details of the data controller and facilitate the examination of the above complaints. The provider responded with document number G/EIS/3180/05-04-2024, stating that the phone line ... has belonged to A since 14/4/2022, a person already known to the Authority from the previous Decision against this specific Data Controller. With documents numbered G/EXE/974/28-03-2024 and G/EXE/1775/01-07-2024, the Authority requested the details of the person who requested the registration of the specific domain name from the domain registrars dnhost and pointer, the last two, in chronological order, that served this specific function for the said business. In their responses numbered G/EIS/3037/02-04-2024 and G/EIS/5588/01-07-2024, the aforementioned registrars transmitted the relevant details to the Authority. This information verifies the already known contact addresses, as well as the individuals involved in the case. With document number G/EXE/1780/01-07-2024 sent to EETT, the Authority, for completeness, requested the history of

changes of the registrars of the domain name [www.anoixisdate.gr](http://www.anoixisdate.gr). EETT responded with document number G/EIS/5765/08-07-2024, in which the eight (8) renewals and changes of registrars are shown, including the transfer of the details to A. From a search in the public registry of the Central Union of Chambers of Commerce of Greece...

3

(<https://www.businessregistry.gr/publicity/show/143491640000>) it appears that in the details of A, an individual business operates under the distinctive title 'Anoixis', VAT number 170313098 and GEMI number 143491640000, which has been active since 15/06/2017 and whose address is located at MEG. ALEXANDROU 7 in LARISSA, ZIP code 41222.

In the context of examining the complaints, the Authority sent to the Data Controller documents corresponding to the complaints, requesting their views on the attached complaints mentioned above, none of which were responded to. Subsequently, the Authority sent the Data Controller the invitation for a hearing under reference number G/EXE/2759/14-10-2024 to its Department on 30/10/2024 in order to present its views regarding the complaints with reference numbers G/EIS/892/05-02-2024, G/EIS/1680/01-03-2024, G/EIS/2472/16-03-2024, G/EIS/2720/22-03-2024, G/EIS/2825/26-03-2024, G/EIS/3056/02-04-2024, G/EIS/3720/22-04-2024, G/EIS/4333/16-05-2024, G/EIS/4674/29-05-2024, G/EIS/4741/30-05-2024, G/EIS/6356/01-08-2024, G/EIS/6901/06-09-2024, G/EIS/7653/04-10-2024, and G/EIS/7729/07-10-2024 for violation of Articles 11 of Law 3471/2006 and 6 and 21 of the Regulation, in its cooperation with the Authority, as provided by Article 31 of the GDPR and in its compliance with Decision 16/2022 of the Authority. At the same time, it sent to the Larissa Police Department the transmittal document with reference number G/EXE/2775/15-10-2024 so that it could serve the invitation to the Data Controller. The Larissa Police Department sent to the Authority the proof of service of the invitation under reference number G/EIS/8106/21-10-2024, according to which, since the legal representative was not found, the invitation was posted at the address of the Data Controller mentioned in the invitation.

At the meeting of the Authority's Department on 30-10-2024, to which the Data Controller had been summoned for a hearing, no one attended. The Authority set a date for deliberation on 13-11-2024, where it discussed the above matter.

The Authority, after examining all the elements of the file and referring to the discussions that took place during the meeting of 13-11-2024, having heard the rapporteur and the clarifications of the assistant rapporteur and after thorough discussion,

#### CONSIDERED IN ACCORDANCE WITH THE LAW

1. According to Article 4, point 7 of the General Regulation (EU) 2016/679 on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, the Regulation), which has been in effect since May 25, 2018, the data controller is defined as "the natural or legal person, public authority, service, or other body that, alone or jointly with others, determines the purposes and means of the processing of personal data."

2. The issue of conducting unsolicited communications by any means of electronic communication, without human intervention, for the purposes of direct commercial promotion of products or services and for any kind of advertising purposes is regulated in Article 11 of Law 3471/2006 on the protection of personal data in the field of electronic communications, which incorporated Directive 2002/58/EC into national law. According to this article (paragraph 1), such communication is permitted only if the subscriber has given prior explicit consent.

According to paragraph 3 of this article, any electronic message is permitted without the prior consent of the data subject only if, among other things, the contact details have been lawfully obtained in the context of a previous sale of products or services or another transaction and can be used for the direct promotion of similar products or services of the supplier or for the provision of similar purposes, and the data subject was informed about the use of their data for communication purposes at the time of data collection and did not express any objection to this use.

3. According to Article 31 of the Regulation, the data controller and the processor and, where applicable, their representatives cooperate, upon request, with the supervisory authority in the

performance of its tasks.

4. As evidenced by the details in the files of the examined complaints, similarly to what is stated in Decision 16/2022 of the Authority, none of the complainants had given prior explicit consent to receive advertising messages from the data controller, nor had they had any prior transactional contact or other relationship with the data controller such that their contact details had been lawfully obtained, thus not requiring their prior consent for the sending of the specific messages, as defined in Article 11, paragraph 1 of Law 3471/2006.

5

5. In the same manner as Decision 16/2022, the data controller did not cooperate with the Authority as they did not respond, repeatedly, to any of the numerous complaint documents sent to them both via email and by post, and did not attend the Authority's meeting, where they were summoned for explanations.

6. The Authority, with Decision 16/2022, has already imposed a sanction on the specific data controller, specifically a fine of fifty-four thousand (54,000) Euros, after examining thirty-six (36) complaints that had been submitted to the Authority previously on the same subject for the violation of the above provisions of Article 11 of Law 3471/2006, as well as for the lack of cooperation from the Data Controller. Based on the above, there has been no compliance with the aforementioned Decision.

7. According to Article 13 paragraph 3 of Law 3471/2006, in cases where an opinion from the National Commission for Telecommunications and Post (E.E.T.T.) is required, it issues an opinion upon request from a subscriber or at the request of the Personal Data Protection Authority or even ex officio.

Based on the above, the Authority unanimously finds that according to Article 11 of Law 3471/2006 and Article 31 of the GDPR, the conditions for imposing an administrative sanction against the data controller exist, based on both Article 13 of Law 3471/2006 in conjunction with Article 58 paragraph 2 point (h) of the GDPR, which is mentioned in the operative part of this decision, deemed appropriate in relation to the severity of the violation.

#### FOR THESE REASONS

Imposes on the data controller the effective, proportionate, and deterrent administrative monetary fine that is appropriate for this specific case according to its particular circumstances, in the amount of forty-five thousand Euros (45,000.00 €), for the above-established violations of Article 11 of Law 3471/2006 and Article 31 of the GDPR. Requests the National Commission for Telecommunications and Post (E.E.T.T.) to examine the accuracy of the registration statement of the Domain Name 'www.anoixisdate.gr' and to take any appropriate action, such as the application of Article 10 of the Regulation on the Management and Assignment of Domain Names with the .gr or .ελ extension regarding the deletion of the assigned Domain Name.

The Deputy President

The Secretary

Georgios Batzalexis

Irini Papageorgopoulou